



United States
Attorney's Office
Western District of Texas



Boerne CEO Sentenced to Three Years in Federal Prison for Tax Evasion and Embezzlement of Employee Health Care Premiums



Wednesday, January 8, 2025

For Immediate Release

U.S. Attorney's Office, Western District of Texas

SAN ANTONIO – A Boerne woman was sentenced in a federal court in San Antonio to 36 months in prison for embezzling employee health insurance premiums and tax evasion.

According to court documents, Belinda Jo Juarez, 53, was the majority owner and CEO of Superior Home Health Service, a health care company based in San Antonio with additional locations elsewhere. The company offered employees the option to enroll in an employee health insurance plan. Beginning in or around August 2017, Juarez knowingly caused her company to stop remitting insurance payments to the insurance providers but continued to withhold contributions from employee paychecks, even after insurance providers canceled their contracts as the result of non-payment. Juarez's employees, some of whom who had incurred costs for medical services, were not informed that their insurance coverage had been cancelled or was inactive. As part of the sentence, Juarez was ordered to pay \$617,738.65 in restitution to former employees for improperly withheld premiums and resultant medical debts.

Juarez was also sentenced on one count of willful failure to collect or pay over tax for withholding federal payroll tax contributions from her employees' paychecks and failing to remit the funds to the IRS for time periods between 2016 and 2019. The sentence accounted for over \$1 million in personal income tax liability. In total, Juarez was sentenced to pay \$3,667,098.88 in restitution to the IRS.

In addition to the restitution and imprisonment, Juarez was fined \$20,000 and will serve three years of supervised release at the conclusion of her sentence.

"Protecting the public treasury is one of the primary missions of federal law enforcement," said U.S. Attorney Jaime Esparza for the Western District of Texas. "It is even more important when, as in this

case, there is direct harm to civilian victims. Not only did this defendant withhold millions in tax payments to the government, but the ill-gotten gains also came directly from the paychecks of her own employees."

"Juarez let greed drive her to defraud the government and left her employees to face the horror of losing their health insurance when they needed it most," said acting Special Agent in Charge Lucy Tan for IRS Criminal Investigation's Houston Field Office. "This case was referred to us by another IRS division, just as we get tips from the public and requests from other agencies. We pair our law enforcement and accounting skills in order to bring justice to victims because criminal greed doesn't stop at one tax violation."

"I hope this sends a clear message to all who sponsor or transact business with employee benefit plans that the federal government will aggressively pursue those who commit crimes against employees and retirees of private-sector pension and health plans," said Dallas Regional Director Deborah Perry for the Department of Labor, Employee Benefits Security Administration (EBSA).

IRS-CI and the EBSA investigated the case.

Assistant U.S. Attorneys Justin Chung and Justin Simmons prosecuted the case.

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